



American Carports, Inc.

457 North Broadway Street • Joshua, TX 76058

American Carports, Inc is a California state licensed Contractor
(Lic. No. 879371) and bonded (CSLB Bond Number T1495L1)
The Responsible Managing Officer is Melton Castillo.

Fax this form to: (817) 484-2182 or (866) 396-2057
E-Mail to: orders@americansteelinc.com

Ready: ☐ **Not Ready:** ☐ **Financed:** ☐

Dealer _____ **Phone** _____ **Date** _____

Buyer Name(S) _____ **County** _____

Buyer Address _____ **City** _____ **State** _____ **Zip** _____

Phone _____ **(Alternative #)** _____ **(Email)** _____

Site (Unit location if different from above): _____

Barn Style:



Building Type: ☐ Carport ☐ RV Cover ☐ Mini Storage ☐ Special Order

Description	Width	Roof Length	Frame Length	Leg Height	Gauge	Price
If your unit is longer than 31' in length, we strongly recommend to opt for our A-Frame Vertical roof, to avoid future leaks.						
Options:	☐ Regular		☐ A-Frame Horizontal			
	☐ Vertical Roof		☐ All Vertical			
	☐ Leg Height					
	☐ Closed Sides		☐ Vertical Sides			
	☐ Closed Ends		☐ Vertical Ends			
	☐ Gable Ends		☐ Front	☐ Back		
	☐ Roll-Up Door		Size: _____			
	☐ Overhead Door		Size: _____			
	☐ Walk-In Door		Size: _____			
	☐ Window					
	☐ Anchors	☐ Mobile Home	☐ Asphalt	☐ Concrete		

Total Sale: \$ _____

Tax: \$ _____
*Amnt. based on Tax Rate
Of Install Location*

Subtotal: \$ _____

**Return Trip
Transportation Fee:** \$ _____
(if applicable)

Drawings: \$ _____
(if applicable)

Labor / Equipment: \$ _____
(if applicable)

Total: \$ _____

Origination Fee: \$ _____
(From the total sale before Taxes)

Balance Due: \$ _____

All Orders C.O.D.

Color:	Roof	Sides	Ends	Trim	Site Level:	☐ Yes	☐ No	Electricity:	☐ Yes	☐ No
	Ridge Cap Color (Vertical Style Only):					Installation:	☐ Ground		☐ Cement	☐ Other (Specify)

THINGS YOU SHOULD KNOW AND THAT YOU AGREE TO:

- It is solely the Buyer's responsibility to check restrictions regarding installation of the building. Some state and local ordinances may require a foundation prior to installation. American Carports, Inc. ("ACI") does not install foundations and all costs associated with foundations shall be the sole responsibility of the Buyer. Other local or state restrictions or prohibitions may apply. The lot must be level and have an adequate foundation or the Building will be installed "AS IS" and ALL WARRANTIES WILL BE VOIDED. It is the Buyer's responsibility to research local and state restrictions or prohibitions on anchoring systems and utilize proper anchors.
 - Height is measured from the top of the base rail to the sidewall (leg height), not the peak. The base rail is 12 inches shorter than the roof.
 - If there is a price discrepancy over \$50.00, the ("ACI") reserves the right to cancel the order. If the Buyer wishes to place the order on hold, ("ACI") will honor the revised price for only 30 days.
- In most cases, all orders will include a free set of generic plans which may not include all options available. Custom plans specific to a purchase can be provided upon request, for an additional nonrefundable fee which MUST be paid in advance.
- It is highly recommended that all ground, gravel, or blacktop installation be securely fastened with Mobile Home anchors. Rebar anchors are designed for temporary use only. ("ACI") will not be responsible for any damage to the structure if the Buyer chooses to use only the rebar anchors provided with the Building. Not using the proper anchors may result in forfeiting the warranty. If it is not possible to install all the mobile home anchors due to rocky or other ground conditions, Buyer will be reimbursed for the mobile home anchors that are not used.
 - The above pricing does not include any extra additions, tasks or requests by the Buyer. A separate quotation and approval by ("ACI") will be required. Any changes to the Building requested after its manufacture is completed, will incur a fee of at least \$200. ("ACI") reserves the right to apply and/or increase additional charges, based on the size and amount of changes.
 - If you are a tax-exempt purchaser, a copy of your tax exemption certificate must be provided before delivery and installation.

BALANCES OWING: Balance due must be paid in full upon delivery. If any balance is left unpaid at the time of delivery, ("ACI") will remain the owner of the Building(s). It is at ("ACI")'s discretion, to repossess the Building(s) at any time. I give my consent for ("ACI") to enter my property and repossess the Building(s).

THIS IS A CONTRACT. By signing this, Buyer acknowledges and agrees with all the above terms contained on the front and back of this document, the three-day cancellation form and all the terms and conditions located on our website at www.AmericanCarportsInc.com/po-terms-and-conditions. This contract is NOT final until review/approval by American Carports, Inc.

Customer Signature: _____ **Date:** _____

Dealer Signature: _____ **Date:** _____

FOR OFFICE USE ONLY

American Carports, Inc.

Approval/Authorization: _____

NOTICE: SEE OTHER SIDE OF THIS DOCUMENT FOR ADDITIONAL TERMS & CONDITIONS

General Terms and Conditions

1. **Breach of Contract.** A Party shall be in material breach and default under this Agreement upon one or more of the following events: a) The failure of such Party to properly perform or cause to be performed each and all of its duties and obligations as set forth in this Agreement. b) The breach of any representation, warranty, or covenant of the Party as set forth in this Agreement. c) The filing of a petition of bankruptcy by any Party or its creditors for relief of debt in any jurisdiction. AMERICAN CARPORTS may, if the Buyer fails to pay the full account balance due upon delivery and the Project Start Date, terminate this Agreement upon five business days written notice to the Buyer. On such termination, American Carports may recover from Buyer payment for all work completed and materials delivered and for any loss sustained by it thereon, including, but not limited to, loss of reasonable profit. A written notice must be given by either Party of a material breach of contract for other than for failure of Buyer to make a required payment, with an opportunity to cure within ten days of notice of a material breach of contract. In any dispute regarding this agreement, the prevailing party will be entitled to attorneys' fees as permitted by law.

2. **Notices by either Buyer or American Carports shall be given by certified or registered mail.** Except as to a warranty claim as set forth all notices shall be given to the addresses of Buyer and American Carports as set forth on the first page of this Agreement unless notice of change of address is given. Notices shall be deemed effective when sent.

3. **Time is of the essence in respect to the obligations of each party under this Agreement.**

4. **Transferability.** This Agreement shall be binding upon Buyer and American Carports and their respective successors and assigns. Neither Buyer nor American Carports may assign this Agreement without written consent of the other Party.

5. **Waiver.** The failure of either Buyer or American Carports to exercise any of its rights or options hereunder or to insist upon compliance with the provisions hereof by the other Party shall not constitute a waiver of the provisions and conditions of this Agreement with respect to any other or subsequent breach or waiver by either Party of its right at any time thereafter to require exact and strict compliance hereunder with all the provisions hereof. The rights and remedies are cumulative to those which may be granted by law.

6. **Governing Law.** This agreement shall be governed and construed under and in accordance with the laws of the State of California as an agreement made therein and performed in whole therein.

7. **Formation, Integration, Modification, and Severability.** This contract constitutes the entire understanding and agreement between Buyer and Seller (collectively, the "Parties") with respect to sale, manufacture, and delivery of the Building and related materials (the "Goods"). A separate additional written construction agreement is required for installation of the Building by Seller. **a) Severability.** In the event that any provision of this Agreement is held invalid or unenforceable by a court of competent jurisdiction, such determination shall not affect the validity of enforceability of the remainder of this Agreement, unless such provision is so material to this Agreement that fulfillment of the Parties' intent is thereby rendered impossible. **b) Integration.** This contract constitutes the entire understanding and agreement between Buyer and the Contractor with respect to installation of the Building and related materials. The terms of this contract are intended by the Parties as a final expression of their agreement with respect to these terms and also as a complete and exclusive statement of the terms. This agreement is a final, complete, and exclusive statement of the agreement of the Parties. No modifications, limitations, waivers or discharge of this agreement or any of its terms shall bind Seller unless in writing and signed by Seller's authorized employee at its home office. Notwithstanding anything to the contrary in this agreement, no modifications, limitation, waiver, or discharge of any provision of this agreement shall affect the Buyer's liabilities to Seller accrued prior thereto. Seller may correct unilaterally any mathematical and typographical errors in this agreement. Typed provisions of this agreement take precedence over printed provisions. A course of performance, course of dealing, or customs in the trade shall not constitute a modification or waiver by Seller of any right by Seller. This agreement is only for the benefit of the Parties, except all disclaimers and limitations applicable to Seller shall be for the benefit of Seller's agents, employees, contractors, and suppliers. If any provisions are determined to apply to third parties, all other provisions, including limitations, waivers, and disclaimers, shall also apply. In the event that any provision of this agreement is held invalid or unenforceable by a court of competent jurisdiction, such determination shall not affect the validity or enforceability of the remainder of this agreement, unless such provision is so material to this agreement that fulfillment of the Parties' intent is thereby rendered impossible.

8. **Attorneys' Fees.** In any dispute regarding this agreement, the prevailing party will be entitled to attorneys' fees as permitted by law.

9. **Prices, Payment, and Risk of Loss.** Prices contained in Seller's published price lists, if any, are subject to change without notice. Prices in individual written quotations or proposals are firm only for a period of thirty days from the date of the quotation, after which Buyer should inquire of Seller as to their validity and request a written confirmation or revision. Prices do not include taxes and Buyer shall pay all applicable sales or other taxes levied with respect to the Goods in this agreement, unless exempt therefrom. All prices are in United States dollars. Buyer shall pay all government fees levied on the installation and inspection of the Goods. Buyer shall pay upon receipt all invoices rendered by Seller for any such items Seller may pay. This agreement is for the manufacture and delivery of fabricated metal structures and the Goods shall be delivered F.O.B. the Buyer's place of delivery. Risk of loss passes to the Buyer upon tender of the Goods to the Buyer. Seller's breach of the agreement shall not affect the passing of the risk of loss to Buyer notwithstanding any provision of law to the contrary. It is Buyer's responsibility to ensure that the Building/carport is covered under Buyer's homeowner or other insurance. It is Buyer's sole responsibility to secure insurance coverage for the Building. Seller may unilaterally increase prices to cover increased costs (plus reasonable overhead and profit) of design, materials, and manufacturing required by changes requested by Buyer after the date of any quotation.

All amounts due on installation or other event which requires the action or cooperation of Buyer which Buyer fails to supply timely shall become due upon such failure. If payment is made by check and the check is returned NSF, Buyer will be responsible for additional expenses incurred by Seller as a result of the returned check. Seller reserves the right to charge additional fees as allowed by law for checks returned NSF. There fees may include a \$35 service charge.

10. **Delivery.** Shipping dates are estimated based on Seller's present engineering and manufacturing capacity and scheduling and may be revised by Seller upon receipt of or scheduling of Buyer's order. All shipping dates are approximate and shall be computed from the date of entry of the order on Seller's books. All shipping dates are further subject to Seller's prompt receipt from Buyer of a written purchase order or acceptance, letter of credit, down payment, and other condition as specified in this agreement, and of all drawings, information, and approvals necessary to provide the Goods and to grant any credit proposed in this agreement. All deliveries will take place at the site where the Building is to be installed, as stated herein above, unless otherwise specified above by the Buyer.

11. **Delay of Shipment or Performance Excused for Various Reasons.** If shipment of any item or other performance by Seller is delayed at the request or due to the fault of the Buyer, the Seller, at its option, may hold the item at the place of manufacture at the risk and expense of the Buyer from the time it is ready for shipment. In the event of any such delay in shipment, full and final payment for an item shall be due and payable thirty days after the Buyer is notified that the item is ready for shipment. If the Seller is unwilling to accommodate Buyer by holding such item, the Buyer shall accept shipment immediately.

12. **Dates for Seller's performance are estimates only.** In addition, the Seller shall not be in default because of its delay or failure to deliver or perform resulting, in whole or in part, from (i) any foreign or domestic embargoes, seizures, acts of God, insurrections, war, or the adoption or enactment of any law, ordinance, regulation, ruling or order, or, (ii) the lack of usual means of transportation, fires, floods, explosions, strikes or any other accidents, contingencies, or events at the Seller's or its supplier's plant or elsewhere (whether or not beyond the Seller's control) which directly or indirectly interfere with, or render substantially more burdensome, Seller's production, delivery, or performance.

13. **Limited Warranty.** Seller warrants, for a period of 20 years from the date of completion of installation, against rust through on the framing only assuming normal user care and maintenance on 12-gauge material only. This warranty does NOT apply to 14-gauge materials. Seller warrants workmanship maintenance for a period of 1 year from date of complete installation, against general leaks, damaged delivered pieces, panels, trim, tubing, doors, braces, repairs and rust to the metal or frame of the building, only assuming normal care and maintenance. **a) Leaks.** Leaks that occur in the roof of the building where metal is fastened to the frame are covered in this 1-year maintenance warranty. i) Overlaps on Horizontal roof panels are not covered on buildings longer than 31ft. ii) No Warranty is provided for leaking at base rail or under the doors. (all doors: overhead, roll-up, and walk-in) iii) Skylights (clear panels) are not covered under the warranty. **b) Wind.** All buildings are installed with the standard rebar rod which does not provide any warranty against wind damage. (Customers may purchase the proper anchoring system, braces and supports which will provide a wind rating and/or warranty.) Wind Warranty is voided when customer uses their own anchors or when the anchors cannot be securely fastened into the ground due to rock or unlevelled ground which does not allow the mobile home anchors to be properly fastened. i) Damages caused by wind to the sheet metal or trim are not covered in the 1-year limited warranty. ii) When a roll-up door or an overhead door is installed; the gap at the top is not a defect; therefore, it is not covered under this warranty. **c) Miscellaneous.** The limited workmanship warranty only applies to defects directly caused by original installation. If the purchaser damages the unit after delivery or installation; then he / she will become responsible to cover the cost of the materials labor to complete the repair. i) Screws. all of our units come with the standard galvanized screws. The color screws to match the color on the siding (metal panels) are available at an additional cost. ii) Additions. Any additions to the unit after a year or more after the original installation; will not have any warranties, nor is going to extend the warranties on the existing unit, or the addition. 1. Any additions decided on site will not have any type of warranties. 2. No additions can be done to units that are 3 years or older. 3. No additions can be performed, if the purchaser doesn't have the original invoice to show that is one of our units. 4. Seller will not add or remove material (s) from units that are not ours. iii) No side jobs are going to be covered under the limited warranty. **d) Repair Claims Procedures.** Any claim under this limited warranty must be in writing and sent to **American Carports Inc., 457 N Broadway St, Joshua, TX 76058**, and be received within 30 days of discovering the claimed defect. The following must be taken into consideration before any claim can be submitted: i) The claim has to be made by the original purchaser (the person on the contract). 1. Calls received from another person not included on the contract, will not be processed as a claim. 2. The original purchaser has to give written/verbal authorization for another person to represent them. ii) The purchaser MUST have the original signed invoice to provide to seller, in order to present a claim. iii) American Carports Inc. reserves the right to ask the purchaser for pictures in order to process a claim. iv) The customer has to be aware that after a claim is received, the seller is going to conduct an investigation to determine the possible cause (s) of the issue; and after the research, a resolution is going to be presented. This will apply to any claim including tilted /collapsed units. 1. The seller must have a reasonable opportunity to inspect the claim, purchaser cannot perform any repair prior to said inspection or the terms of the warranty could be voided. v) No made up information is going to be accepted, the purchaser must have the proper proof of contact with any of our customer service personnel. (representative name, voice mail, e-mail, etc.) vi) Rust: The 14-gauge steel option carries a 1 year no rust warranty (main frame material only). The 12-gauge main frame material 20 year no rust warranty. Both cases, assuming normal care and maintenance. [framing is described as rail, legs, and bows.] Units without any extra material (trusses, hat channels, etc..) written on the contract; are only rated for 30 PSF ground load. Check with your local ordinances before purchasing.

NOTICE OF RIGHT TO CANCEL

Date of transaction _____
Date

Cancel no later than midnight of _____
Date

_____ (Buyer's Initials) The law requires that the Contractor give you a notice explaining your right to cancel.
Initial the check-box if the Contractor has given you a "Notice of the Three-Day Right to Cancel".

You, the buyer, have the right to cancel this contract within three business days.

If you cancel, the contractor must return to you anything you paid within 10 days of receiving the notice of cancellation. For your part, you must make available to the contractor at your residence, in substantially as good condition as you received them, goods delivered to you under this contract or sale. Or, you may, if you wish, comply with the contractor's instructions on how to return the goods at the contractor's expense and risk. If you do make the goods available to the contractor and the contractor does not pick them up within 20 days of the date of your notice of cancellation, you may keep them without any further obligation. If you fail to make the goods available to the contractor, or if you agree to return the goods to the contractor and fail to do so, then you remain liable for performance of all obligations under the contract.

The goods must be returned in the same condition as upon delivery. Any changes to the goods by installation or otherwise, whether installed by Contractor or Buyer, will result in a partial or total deduction from your refund equal to Contractor's estimate of the value of any portion that is not reusable or resalable. If you choose to cancel your purchase and installation, the dealer to which you paid your down payment is responsible for returning your down payment and not American Carports, Inc.

You may cancel this transaction by e-mailing, mailing, faxing, or delivering a written notice to the contractor by midnight of the third business day after you received a signed and dated copy of the contract that includes this notice to:

American Carports, Inc.

457 North Broadway Street • Joshua, TX 76058

Fax: (817) 484-2182 or (866) 396-2057 **E-Mail:** orders@americansteelinc.com

Your name, your address, and the date you received the signed copy of the contract and this notice is required to process the cancellation of your order.

I _____ hereby cancel this transaction _____
Buyer's Printed Name Date

Buyer's Signature

Address City State Zip Code

Phone Number Fax Number E-Mail Address

Cancellation Policy

The Dealer named on the face of this Order is NOT an agent of Seller for any purpose except receipt of the Deposit. No representation or agreement by the Dealer is binding on Seller. The dealer offers a 72-hour cancellation policy once signed.

Refunds are not permitted for any reason once signed and sent to the manufacturing process unless denied permits signed by a government official within 90-days of signing the contract. After 90 days, the deposit is non-refundable. If your county requires any site specific engineered plans all necessary plans must be purchased in order to qualify for a permit denial.

Habitable structures do not qualify for a refund.

Delivery Time Scheduling:

All delivery times are estimates based on the time the customer gets on the schedule. The customer gets on schedule when their permitting is done & land is ready for installation. Weather conditions and construction issues can affect the delivery timeline.

Building projects that take longer than six months to complete can be subject to current material price.

Revision :

There will be a revision fee of \$150 dollars per revision for each change made after the order has been processed. The revision fee can be waived if changes are needed to be made by permitting officials. Revisions that result in a decrease of deposit are non-refundable



Wall Installation - 3 Feet Maximum



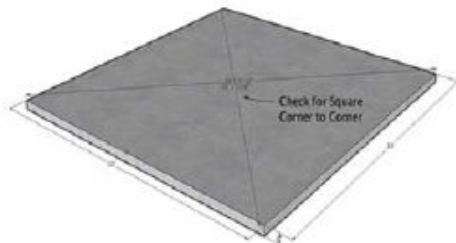
No Installs on Stacked Blocks



No Installs on Floating Docks



No Installs on Uneven Land



Slab Must Be Level & Square



No Installs on Slopes Over 12"

Customer Signature _____

Date _____